

Kamlesh Kumar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 May 2014 · Writ-C No. 24901 of 2014 · **Writ disposed of; petitioner relegated to clause 6.5.**

HEADNOTE

A writ petition disputing the quantum of an electricity bill is not maintainable. The consumer has a more appropriate remedy under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, because such a dispute is purely factual and cannot be decided on annexures in writ jurisdiction.

FACTUAL SUMMARY

Kamlesh Kumar Singh challenged Bill No. 436123 issued by Purvanchal Electricity Supply Corporation Limited before the Allahabad High Court. Counsel for the Corporation submitted that a consumer disputing the quantum of a bill has a remedy under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, where disputed questions of fact can be decided on the consumer's record. The Court accepted that preliminary objection and did not examine the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill quantum dispute — clause 6.5 remedy

HOLDING

Where a consumer disputes the quantum of a bill, the dispute is purely factual and the writ court will not appraise evidence on annexures. The consumer has a more appropriate remedy under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, and the writ petition cannot be maintained at that stage; the petitioner may avail that remedy if so desired. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF BILL NO. 436123

Quantum held a purely factual dispute; relegated to clause 6.5 without examining the bill. ¶ 4-6